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Turner v. State

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Court	Georgia Supreme Court
Writing for the Court	Melton
Citation	Turner v. State, 641 S.E.2d 527, 281 Ga. 647 (Ga. 2007)
Decision Date	26 February 2007
Docket Number	No. S06A1971.,S06A1971.
Parties	TURNER v. The STATE.

281 Ga. 647

641 S.E.2d 527

TURNER v. The STATE.

No. S06A1971.

Supreme Court of Georgia.

February 26, 2007.

Donald F. Samuel, Garland, Samuel & Loeb, P.C., Atlanta, Jimmy Dodd Berry, D. Victor Reynolds, Berry & Reynolds, Marietta, for Appellant.

Thurbert E. Baker, Atty. Gen., Patrick H. Head, Dist. Atty., Dana J. Norman, Asst. Dist. Atty., for Appellee.

Following a jury trial, Julia Lynn Turner was convicted of malice murder in connection with the poisoning death of her husband, Glenn Turner. Turner appeals from the denial of her motion for new trial.¹ We affirm.

Viewed in the light most favorable to the jury's verdict, the evidence reveals that Turner's husband, Glenn, a Cobb County police officer, died unexpectedly on March 3, 1995. For several months prior to Glenn's death, he had been having marital problems with Turner, and he confided to two of his close friends and colleagues that, if he ended up dead, Turner probably would have had something to do with it. As his marital problems with Turner continued, Glenn decided that he would move out of their home on the week-end of March 3, 1995. A few days before his planned move, however, Glenn became very ill and went to a hospital complaining of nausea and flu-like symptoms. Glenn was given fluids for dehydration, medicine for his nausea, and discharged. The next morning, Turner served Glenn green Jell-O, a food that would not show signs of being laced with antifreeze if it contained such a poison. Turner left Glenn at home after feeding him the Jell-O, and Glenn died within a few hours. Although Glenn's autopsy revealed signs of antifreeze poisoning, the Cobb County medical examiner concluded at that time that Glenn died of a heart attack. Soon after Glenn's funeral, Turner collected nearly a quarter of a million dollars from Glenn's estate and from insurance proceeds and death benefits as the primary beneficiary under Glenn's insurance policies.

Four days after Glenn's funeral, Turner moved in with Randy Thompson, a man with whom she had been having an affair prior to her husband's death. Thompson died six years later. Three days before Thompson's death, he spent the evening with Turner and had dinner with her. A few hours later, he became violently ill, and the next day he went to the emergency room with complaints of flu-like symptoms. Thompson was treated for his symptoms and discharged from the hospital. The following night, Turner fed him Jell-O, and Thompson was found dead the next morning. Turner, who had been incurring substantial debt prior to Thompson's death, collected over \$30,000 as the beneficiary under Thompson's life insurance policy.

A Georgia Bureau of Investigation (GBI) toxicologist studied urine and blood samples from Thompson and discovered the presence of ethylene glycol, a poisonous substance found in antifreeze. When further tests confirmed the presence of antifreeze in Thompson's body, a GBI medical examiner determined the cause of Thompson's death to be ethylene glycol toxicity, a rare type of poisoning typically caused from the ingestion of antifreeze. After learning that Turner's husband had also died unexpectedly a few years earlier, the medical examiner ordered slides of the husband's kidneys, which revealed the same signs of antifreeze poisoning that were present in Glenn's first autopsy. Cobb County authorities then exhumed Glenn's body and additional tests were performed that confirmed the presence of ethylene glycol in Glenn's tissues. The Cobb County medical examiner revised Glenn's death certificate to show that the cause of death was ethylene glycol toxicity rather than heart-related disease. Thereafter, Turner was charged with murdering her husband.

1. Turner contends that the trial court erred in admitting into evidence the death of Randy Thompson as a similar transaction. Turner claims that, because there was no logical connection between the alleged murders of Thompson and her husband, the

trial court could not admit evidence of the Thompson murder for the proper purposes of showing her motive, bent of mind, scheme, or course of conduct in relation to the current offense.

Similar transaction evidence is admissible where (1) it is introduced for a proper purpose, (2) sufficient evidence shows that the accused committed the independent offense, and (3) a sufficient connection or similarity exists between the independent offense and the crime charged so that proof of the former tends to prove the latter. *Williams v. State*, 261 Ga. 640(2)(b), 409 S.E.2d 649 (1991) (<https://case-law.vlex.com/vid/williams-v-state-no-891178179>). Here, the State sought to introduce the Thompson murder for a proper purpose, substantial evidence showed that this uncharged offense could be linked to Turner, and there was a logical connection between the Thompson murder and the murder of Turner's husband that would render this similar transaction admissible. See *Lyles v. State*, 215 Ga. 229(2), 109 S.E.2d 785 (1959) (<https://case-law.vlex.com/vid/lyles-v-state-no-890452053>) (uncharged poisoning murders of other family members properly admitted in defendant's murder trial for poisoning daughter where evidence showed common scheme of poisoning family members to collect insurance money). Specifically, Turner was intimate with both Thompson and Glenn; both men went to the hospital complaining of flu-like symptoms soon before they died; both men died from the unique cause of antifreeze poisoning; Turner was the last person to see either man alive; both men died soon after Turner served them Jell-O; and Turner, who had financial problems before the deaths of both men, collected substantial money in connection with their deaths. The evidence of Thompson's death was sufficiently connected to the death of Turner's husband to show Turner's common scheme and method of "murder[ing] [these men] for no cause except to satisfy her selfish desire for money." Id. at 236 (<https://case-law.vlex.com/vid/lyles-v-state-no-890452053>)(5), 109 S.E.2d 785 (<https://case-law.vlex.com/vid/lyles-v-state-no-890452053>). The trial court did not clearly err in admitting into evidence Thompson's death as a similar transaction. Id. at 235 (<https://case-law.vlex.com/vid/lyles-v-state-no-890452053>)(2), 109 S.E.2d 785 (<https://case-law.vlex.com/vid/lyles-v-state-no-890452053>); *Smith v. State*, 273 Ga. 356(2), 541 S.E.2d 362 (2001) (<https://case-law.vlex.com/vid/smith-v-state-no-887069500>).

2. Turner argues that the trial court's pattern jury charge on similar transaction evidence was erroneous because the charge stated, in part, that "[i]f [you determine that the accused committed the independent offense], you must then determine whether the act was similar enough to the crime charged in the indictment such that proof of the other offense tends to prove the crime charged in the indictment, keeping in mind the limited purpose of such evidence." Turner claims that the charge was improper in that it allowed the jury to find Turner guilty of murdering her husband if it believed that she murdered Thompson. Viewing the charge as a whole, however, as we must (*Stansell v. State*, 270 Ga. 147(4), 510 S.E.2d 292 (1998) (<https://case-law.vlex.com/vid/stansell-v-state-no-894008816>)), we conclude that the charge adequately and appropriately informed the jury of the limited purpose for which the similar transaction evidence could be considered. The charge repeatedly emphasized that the similar transaction evidence could only be considered for "the limited purpose of showing, if it does, the motive, plan and/or scheme, bent of mind, or modus operandi in the crime charged in the case now on trial." We find no error. *Spencer v. State*, 268 Ga. 85(3), 485 S.E.2d 477 (1997) (<https://case-law.vlex.com/vid/spencer-v-state-no-894956967>).

3. Turner asserts that the trial court erroneously admitted hearsay in the form of (a) testimony from six witnesses regarding statements allegedly made by Glenn prior to his death, (b) testimonial statements made by Glenn to two police officers that were inadmissible under *Crawford v. Washington*, 541 U.S. 36, 124 S.Ct. 1354, 158 L.Ed.2d 177 (2004), and (c) Randy Thompson's diary.

(a) Hearsay statements are admissible under the necessity exception to the hearsay rule when the evidence is both necessary and accompanied by particularized guarantees of trustworthiness. *Chapel v. State*, 270 Ga. 151(4), 510 S.E.2d 802 (1998) (<https://case-law.vlex.com/vid/chapel-v-state-no-890248690>).

"Necessity" is demonstrated when the declarant is deceased, when the statement is shown to be relevant to a material fact, and when the statement is more probative of the material fact than other evidence that may be produced and offered. The requirement of "particularized guarantees of trustworthiness" is satisfied when the declaration is coupled with circumstances which attribute verity to the declaration. The determination of trustworthiness is inescapably...

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United States Georgia Court of Appeals June 6, 2007

...v. Bockting, ___ U.S. ___, 127 S.Ct. 1173, 1181, 167 L.Ed.2d 1 (2007) (Crawford announced a new procedural rule); Turner v. State, 281 Ga. 647, 650-651, 641 S.E.2d 527 (2007) (Crawford rule does not apply to nontestimonial hearsay). Scurry's statement was given during police interrogation,

Griffin v. State (<https://case-law.vlex.com/vid/griffin-v-state-no-894343260>)

United States Georgia Supreme Court June 25, 2007

...139 (2004); State v. Madden, 242 Ga. 637, 250 S.E.2d 484 (1978). 23. Moore, 278 Ga. at 474, 604 S.E.2d 139. 24. Turner v. State, 281 Ga. 647, 650, 641 S.E.2d 527 (2007). 25. Id. 26. Id. at 650, 641 S.E.2d 527, quoting Watson v. State, 278 Ga. 763, 765, 604 S.E.2d 804 (2004). 27. See Clark v.....

Wright v. State (<https://case-law.vlex.com/vid/wright-v-state-no-889036064>)

United States Georgia Supreme Court February 23, 2009

..."when the statement is more probative of the material fact than other evidence that may be produced and offered." Turner v. State, 281 Ga. 647, 650(3)(a), 641 S.E.2d 527 (2007). Whether the testimony has particularized guarantees of trustworthiness is a matter left to the trial court's disc.....

Navarrete v. State (<https://case-law.vlex.com/vid/navarrete-v-state-no-889801635>)

United States Georgia Supreme Court January 28, 2008

...the necessity exception. While a close relationship between Davis and Wulff may militate in favor of admission, see Turner v. State, 281 Ga. 647(3)(a), 641 S.E.2d 527 (2007), that one factor alone is not dispositive, especially where the totality of the circumstances dictate otherwise. See

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...S.E.2d 713, 715 (2002)). 242. Id. 243. Id. (quoting Dolensek, 274 Ga. at 679, 558 S.E.2d at 715-16). 244. Id. 245. 541 U.S. at 53. 246. 281 Ga. 647, 641 S.E.2d 527 (2007). 247. Id. at 647, 641 S.E.2d at 529. 248. Id. 249. Id. at 649-50, 641 S.E.2d at 531. 250. Id. at 649, 641 S.E.2d at 530-.....

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